

Justification for an Exception to Fair Opportunity

1. **AGENCY AND CONTRACTING ACTIVITY:** This is a Justification and Approval for an Exception to the Fair Opportunity Process. The requiring activity is the Public Works Department; the contracting activity is the Naval Facilities Engineering Systems Command Southwest (NAVFAC SW), Facilities Engineering and Acquisition Division (FEAD) San Diego.

2. DESCRIPTION OF CONTRACT ACTION:

☐ New Requirement ☐ Follow-on Order

☐ Existing Order Number:

☒ Order against: Multiple Award ID/IQ Contract Number:

N62473-21-D-3604

☐ Pricing ☒ Firm-Fixed Price ☐ Time & Materials ☐ Cost Type

☒ Funds: [REDACTED] ☐ Other Funds:

3. **DESCRIPTION OF REQUIRED SUPPLIES/SERVICES:** The proposed acquisition is to issue a sole source task order under the Multiple Award Service Contract (MASC) N62473-21-D-3604 to KGJJ Engineering Solutions, LLC (KGJJ) (Cage Code: 8LXA0) without affording fair opportunity to other MASC awardees pursuant to the authority identified in Section 4 of this Justification and Approval (J&A). The proposed acquisition is to acquire various urgent and emergency services and supplies for Navy and Marine Corps installations in the San Diego Metro area, including but not limited to, Naval Base San Diego, Naval Air Station North Island, Naval Base Point Loma, Marine Corps Air Station Miramar, and each of their respective Areas of Responsibility. The various urgent and emergency services will include, but are not limited to, certified restorations, welding of fences and gates, tree removal and trimming, repair of elevators, removal and remediation of bio-medical for hazardous waste, repair of lighting for piers and generators for unpredicted power outages, and acquisition of supplies and materials in support of base operations.

The blanket task order [REDACTED], which utilizes historical data based on previous credit card purchases. The performance period to complete the required work will be up to September 30, 2025. [REDACTED].

4. AUTHORITY AND DEMONSTRATION THAT NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:

The statutory authority is 10 United States Code (U.S.C.) Section 3406(c)(1), as implemented by FAR 16.505(b)(2). The Contracting Officer shall give every awardee a fair opportunity to be considered for a delivery/task order exceeding the micro-purchase threshold, unless one of the following statutory exceptions applies:

☒ The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays [FAR 16.505(b)(2)(i)(A)];

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☐ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized [FAR 16.505(b)(2)(i)(B)];

☐ The order-must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order[FAR 16.505(b)(2)(i)(C)];

☐ It is necessary to place the order to satisfy a minimum guarantee [FAR 16.505(b)(2)(i)(D)]; or

☐ For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that purchase-be made from a specified source [FAR 16.505(b)(2)(i)(E)]

Rationale/explanation to support cited authority: Acquisition of the required services and supplies under this Blanket Task Order is necessary because the Government Commercial Purchase Card (GCPC) Program has been suspended for all non-military cards. The GCPC program is customarily used at Navy and Marine Corps installations for acquisitions of services and supplies in situations requiring immediate action and the use of traditional acquisition methods is not available because the Government would incur unacceptable delays. This proposed contract action is necessary for the Public Works Departments to obtain the required supplies, materials, and urgent and emergent services without unnecessary delays in order to protect the health and safety of the Government personnel and users of Government facilities and prevent damage to mission critical Government facilities. At this time it is unknown as to when the GCPC program will be restored, if at all. Failure to perform any of these services or acquire the necessary supplies without unnecessary delays will create unacceptable health and safety risks to Government personnel and users of Government facilities and potential to damage to mission critical Government facilities as result of such conditions as mold growth, inaccessible facilities, and the inability to meet anti-terrorism and force protection requirements within each installation's boundaries.

Pursuant to the authority of 10 U.S.C. Section 3406(c)(1), as implemented by FAR 16.505(b)(2)(i)(A). Exceptions to the fair opportunity process, this J&A requests the authority to award a one-time blanket task order to KGJJ without affording fair opportunity to other MASC awardees because the need for the required services and supplies is so urgent that providing fair opportunity procedures would result in unacceptable delays. KGJJ is currently onsite performing service work in and around the San Diego Metro area, and they are capable of performing the emergency work within the required time. KGJJ has performed and is performing successfully other service contracts with a similar scope of work.

5. FAIR AND REASONABLE COST DETERMINATION: The Contracting Officer has determined the anticipated cost to the Government of the services and supplies covered by this justification will be fair and reasonable.

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6. **ANY OTHER FACT SUPPORTING THE JUSTIFICATION:** In accordance with FAR 5.202(a)(6), a notice of the proposed acquisition will not be published because of the extreme urgency of this contract action as noted above and the Government would incur unacceptable delays if the Government complies with the competitive procedures to solicit to all MASC awardees, and adheres to the time periods and other procedural requirements specified for soliciting the required work in accordance with FAR 5.203 – Publicizing and Response Time.

7. **ACTIONS TO INCREASE COMPETITION:** The contract action is a blanket task order one-time, sole-source procurement for various urgent and emergency services and acquisition of supplies and materials in support of base operations that are necessary to protect the health and safety of the Government personnel and users of Government facilities and prevent damage to mission critical Government facilities. Each base within the San Diego Metro area has each taken one of the contractors from the Multi-Function Multiple Award Service Contract to promote spreading the wealth to all contractors. If NAVFAC SW determines that an additional blanket task order is required, a competitive solicitation will be issued to meet the need of NBSD.

8. TECHNICAL/REQUIREMENTS/FUNCTIONAL LEAD CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification is complete and accurate to the best of my knowledge and belief.

Signature:

Name/Title:

9. LEGAL SUFFICIENCY REVIEW

I have reviewed and determined this Justification is legally sufficient.

Signature:

Name/Title:

Upon the basis of the above justification, I hereby approve the Exception to Fair Opportunity for the proposed procurement(s) described herein using pursuant to the 10 U.S.C. Section 3406(c), as implemented by FAR 16.505(b)(2).

10. ACTIVITY CONTRACTING OFFICER APPROVAL

Signature:

Name/Title:

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